

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

April 16, 2026

8:30 a.m./1:30 p.m.

11. KRISTINE WALLERMAN V. MERLE WALLERMAN

PFL20040449

On February 2, 2026, Petitioner filed a Request for Order (RFO) seeking orders regarding the equalization payment, attorney's fees, and sanctions. All required documents were personally served on February 9, 2026 in accordance with Family Code § 215.

Respondent filed a Responsive Declaration to Request for Order on April 8, 2026. It was served on April 2nd.

Petitioner asks the court to order Respondent to immediately pay the equalization payment of \$9,672.65 with interest. She further requests attorney's fees and sanctions pursuant to Code of Civil Procedure § 2023.030 and Family Code § 271.

Respondent asks the court to deny the RFO in its entirety and find that no valid enforceable court order exists requiring Respondent to pay an equalization payment of \$9,672.65. Alternatively, find that Petitioner's claim is barred due to the doctrine of laches.

The court has reviewed the filings as outlined above and the Marital Settlement Agreement (MSA) and it is unclear to the court how Petitioner has come to the conclusion that she is owed an equalization payment of \$9,672.65. Petitioner has failed to establish grounds for the requested order and therefore, the request is denied.

Because the underlying request for the equalization payment is denied, so too is the request for attorney's fees and sanctions.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #11: PETITIONER'S RFO IS DENIED IN ITS ENTIRETY. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF

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A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.